

		before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties.” The client is the trustee of the subject trust, and the court’s records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. If the client appears at the hearing, the motion may be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
		TENTATIVE RULING Case: Calendar No.: Date: 06/17/26
01059752	Zeigler - Trust	TENTATIVE RULING Case: Zeigler - Trust 01059752 Calendar No.: 6 Date: 06/17/2026 MOTION FOR RECONSIDERATION (ROA 551) Petitioner Linda Zeigler (“Petitioner”) filed a motion captioned as follows: “MOTION FOR RECONSIDERATION OF OSC RE CONTEMPT REQUEST TO RESTORE CALENDAR COURT ORDER OF 12.5.2022 HEARD ON 10.8.2025, C.C.P. §1008, AND REQUEST FOR STAY C.C.P. §404.5 FOR THE TRIAL SET FOR 12.2.2025. (ROA 551.) There is no proof of service of this motion and no opposition filed. Thus, the motion could be denied for lack of notice. The motion can further be denied on the merits.

		From what the court is able to decipher from the moving papers, Petitioner is requesting that the court reconsider the order made by Judge Baytieh on 10/8/25 (ROA 550). Judge Baytieh is unavailable to rule on this motion for reconsideration, having recused himself from this case on 2/3/26. On 10/8/25, Judge Baytieh denied Petitioner's motion to have the court reset a hearing on the court's OSC re Contempt. (Id.) Petitioner argues that the 10/8/25 Order must be reconsidered because Judge Baytieh mistakenly found that citations had not been issued in connection with Petitioner's request for an OSC re Contempt. Petitioner misunderstands the 10/8/25 Order. In the 10/8/25 Order, Judge Baytieh recounted the entire procedural history related to the OSC re Contempt, including what happened on 4/24/23. On 4/24/23, Judge Belz found that the charging papers for the OSC re Contempt had not been personally served; thus, he continued the OSC re Contempt to 6/5/23. (ROA 205.) Thereafter, Petitioner served citations and filed them on 5/22/23 and 5/24/23. (ROAs 211 and 212.) The OSC re Contempt was eventually heard and resolved on 8/7/23. (ROA 279.) Contrary to the assertions made in Petitioner's motion for reconsideration, Judge Baytieh did not deny Petitioner's motion to set a hearing on her OSC re Contempt because she had failed to serve citations. Judge Baytieh denied the motion because Judge Belz resolved the OSC re Contempt on 8/7/23 and Petitioner had cited no legal basis for her request to have it reheard. (ROA 279.) Based on the foregoing, Petitioner's motion for reconsideration is denied. Petitioner's request for a stay pending trial is denied as moot since trial is currently underway. Ms. Zeigler is ordered to serve notice of this ruling.
		[Motion Type]